

CITATIONS:**Bluebook 22nd ed.**

Robert B. Mckersie & Richard E. Walton, Reflections on Negotiation Theory, Practice, and Education: A Robust Record and New Opportunities, 31 NEGOT. J. 491 (2015).

ALWD 7th ed.

Robert B. Mckersie & Richard E. Walton, Reflections on Negotiation Theory, Practice, and Education: A Robust Record and New Opportunities, 31 Negot. J. 491 (2015).

APA 7th ed.

Mckersie, R. B., & Walton, R. E. (2015). Reflections on negotiation theory, practice, and education: robust record and new opportunities. *Negotiation Journal*, 31(4), 491-500.

Chicago 18th ed.

Mckersie, Robert B., and Walton, Richard E. "Reflections on Negotiation Theory, Practice, and Education: A Robust Record and New Opportunities." *Negotiation Journal* 31, no. 4 (2015): 491-500. HeinOnline.

McGill Guide 10th ed.

Robert B. Mckersie & Richard E. Walton, "Reflections on Negotiation Theory, Practice, and Education: A Robust Record and New Opportunities" (2015) 31:4 Negot J 491.

AGLC 4th ed.

Robert B. Mckersie and Richard E. Walton, 'Reflections on Negotiation Theory, Practice, and Education: A Robust Record and New Opportunities' (2015) 31(4) *Negotiation Journal* 491

MLA 9th ed.

Mckersie, Robert B., and Richard E. Walton. "Reflections on Negotiation Theory, Practice, and Education: A Robust Record and New Opportunities." *Negotiation Journal*, vol. 31, no. 4, October 2015, pp. 491-500. HeinOnline.

OSCOLA 4th ed.

Robert B. Mckersie & Richard E. Walton, 'Reflections on Negotiation Theory, Practice, and Education: A Robust Record and New Opportunities' (2015) 31 Negot J 491

Date Downloaded: Sat Apr 4 18:15:11 2026

Source: <https://heinonline.org/HOL/Page?handle=hein.journals/nej31&id=491>

Terms, Conditions & Use of PDF Document:

Please note, citations are provided as a general guideline. Users should consult their preferred citation format's style manual for proper formatting. Your use of this HeinOnline PDF indicates your acceptance of William S. Hein & Co., Inc. and HeinOnline's Terms & Conditions: <https://help.heinonline.org/kb/terms-conditions/>. The search text of this PDF is generated from uncorrected OCR text. To obtain permission to use this article beyond the scope of your license, please use: <https://www.copyright.com>.

Please note: citations are provided as a general guideline. Users should consult their preferred citation format's style manual for proper citation formatting.

Concluding Comments

Reflections on Negotiation Theory, Practice, and Education: A Robust Record and New Opportunities

Robert B. McKersie and Richard E. Walton

We are grateful for all the attention and interest that our book, *A Behavioral Theory of Labor Negotiations: An Analysis of a Social Interaction System*, has received on the occasion of the fiftieth anniversary of its publication. Producing this kind of scholarship can be likened to raising a child, and like any parents we were uncertain about how it would develop over the ensuing decades.

In their research and practice, the contributors to this special issue of *Negotiation Journal* and their colleagues have taken what could be seen as an immature subject and have developed it into a robust area of inquiry located within the larger field of social sciences. They have expanded our horizons and introduced new concepts and research findings that help negotiators perform more effectively (Fisher and Ury 1983; Lax and Sebenius 1986). They have documented the important role of emotions in negotiation and conflict resolution (Shapiro 2002), the pervasive effect of biases and bounded rationality on rational decision making (Bazerman 1983; Malhotra and Bazerman, this issue), the role of improvisation (Wheeler 2013), and the challenges of reaching agreement in multi-stakeholder negotiations (Cutcher-Gershenfeld et al. 2015).

Robert B. McKersie is professor emeritus of management at the Massachusetts Institute of Technology Sloan School of Management in Cambridge, Massachusetts. His e-mail address is rmckersi@mit.edu.

Richard E. Walton is the Wallace Brett Donham Professor of Business Administration, emeritus at the Harvard Business School in Boston.

With Joel Cutcher-Gershenfeld, we joined the effort to expand our own understanding of negotiations with the publication twenty-one years ago of *Strategic Negotiations: A Theory of Change in Labor-Management Relations* (1994). The 1990s was a time of extensive restructuring in the economy and in workplaces, and we addressed the importance of “the social contract” between workers and employers, arguing that this was a distinct outcome, related to — but separate from — the substantive elements of the agreement between labor and management. Examining both the social contracts *and* the substantive agreements enabled us to add strategy and structure to the ideas introduced in *A Behavioral Theory*.

Scholars represented in this journal have also improved on the awkward terminology used in *A Behavioral Theory*. “Creating and claiming” are more descriptive terms than “integrative bargaining and distributive bargaining” (Sebenius, this issue). The sequencing of these sub-processes in practice remains a challenge, however (creating before claiming), although the integrative and distributive sub-processes do often occur concurrently in operation.

Similarly, the tongue twister labels we created for the internal negotiations sub-process have evolved — “intraorganizational bargaining” has given way to “internal bargaining.” It is useful to think of the role of the chief negotiator as the “agent,” balancing the demands of the other party with the expectations of his or her constituents and principals (Mnookin and Susskind 1999). And the codification of “interest-based bargaining” as a concept and tool captures in a practical way the potential of integrative bargaining (Cutcher-Gershenfeld 1994; Barrett, this issue).

We and many of our colleagues have wanted a better label than “attitudinal structuring.” “Relationship building” is easily understood and has face validity for most of the negotiations we studied, that is, those in which the parties seek to build a relationship based on mutual trust and positive regard. However, the intended social relationship in some cases might be minimal, and both parties may take a neutral “wait and see” stance. Indeed, in some cases (Rowe, this issue), the relationship may be extremely hostile — such as those involving kidnappers, hostage takers, and terrorists — and both parties may want to “shape their relationship” in very different ways; for example, one may want to promote fear, while the other may wish to be seen as neutral. In addition, actions that influence each party’s attitudes, sentiments, and perceptions toward the other may be inadvertent, unplanned, and unintended. Nevertheless, they are part of this sub-process and influence the relationship.

The impressive diversity of settings from which the contributors to this special issue have drawn their observations bolsters our confidence in the general usefulness of ideas found in *A Behavioral Theory*. These settings include schools of law, business, and industrial relations; a health-care provider; labor unions; the federal government; and private mediation

practice. Nevertheless, neither we nor these contributors have addressed every important negotiation setting (such as those noted above: kidnapping, hostage taking, and terrorism, for example).

The Fortunate Timing of *A Behavioral Theory*

Little did we know in 1965 that the timing for the development of *A Behavioral Theory* would be so propitious. The last fifty years have witnessed tremendous growth in the field of negotiation research and education. It would take a separate document to analyze *all* the reasons why this has occurred, but they include:

- the development of several centers devoted to negotiation research and practice;
- the launching of thousands of executive education courses in this subject area and the development of a variety of law and business school negotiation courses;
- the creation of this journal and others devoted to similar topics; and
- the establishment of special sections of the Academy of Management (conflict management) and the American Bar Association (alternative dispute resolution), and the launching of the International Association for Conflict Management (IACM) and the Association for Conflict Resolution (ACR).

So *A Behavioral Theory* has ridden the rising tide as the subjects of negotiation and conflict resolution have become more pervasive, and as more people have asked how parties can deal effectively with their differences and exploit opportunities for joint gain.

Regrettably, systematic evaluation of what works in practice has not kept up with the rapid growth of the field. In our efforts to improve negotiation practice, we have developed engaging simulations and exercises. **The participants leave our executive education seminars highly motivated to use the newly acquired concepts and tools. But insufficient attention has been given to conducting follow-up studies that document how this knowledge actually gets deployed and what difference it makes in practice** (Hunter and McKersie 1992; Wheeler, this issue). As Roy Lewicki, Leonard Greenhalgh, and Michael Wheeler all observe in the section on pedagogy, **producing lasting behavioral change is a tall order.**

The Influence of *A Behavioral Theory* on Our Own Work

We have been asked whether the concepts we articulated in *A Behavioral Theory* have influenced our activities in the years following the book's publication. Robert McKersie decided to try his hand at academic admin-

istration and had opportunities to apply some of the ideas in *A Behavioral Theory* when he became dean of the New York School of Industrial and Labor Relations at Cornell University in 1971. This was a humbling experience — similar to the one Douglas McGregor had when he served as president of Antioch College. McGregor (1960) commented that it was one thing to write about Theory X and Theory Y, but a completely different matter to put these ideas into practice.

For example, as dean, McKersie had to decide how to respond to the demands of a student organization called “The Committee on Labor Action.” The students wanted to have Labor Day (when Cornell University was in session) declared a holiday. Their strategy and tactics were distributive bargaining: holding a rally, posting handbills, and demanding to “negotiate” with the dean. McKersie’s strategy — followed not too successfully — was to shift the discussions away from their forcing strategy and in the direction of consultation (see McKersie 2012).

Walton’s research continued to focus on conflict management, drawing upon the central ideas of *A Behavioral Theory*. One of his major efforts examined counterproductive interpersonal conflict — between two executives, for example — and third-party interventions designed to help them resolve or better manage their differences (Walton 1969).

In 1969, Walton and several colleagues participated in a workshop that brought delegations from Somalia, Ethiopia, and Kenya to a mountain retreat in northern Italy to address their troublesome border disputes (Walton 1970; Cutcher-Gershenfeld et al. 2015). A subsequent publication drew parallels between the roles of third parties at both the interpersonal and international levels (Walton 1987). He continued to utilize thick descriptive case studies, including those documenting his own professional third-party experiences. After 1970 his research shifted to other subjects.

The Negotiation Research Agenda: Looking Forward

As we consider how the field of negotiation research has unfolded, we have concluded that the scholarly community has paid insufficient attention to all of the stages of what might be thought of as the “food chain” or “value chain” of negotiations. Most of our attention has been devoted to understanding what happens when the parties are “at the table.” Just as important, however, are (1) the phase that can be thought of as “preparing the field” or “identifying value,” when the parties are not yet talking and may be unsure or divided over whether they should actually engage in face-to-face negotiations; and (2) the phase following negotiation, which involves implementing the negotiated agreement.

Getting to the Table

The preliminary phase was very much on the mind of Professor Benjamin Selekman, a major influence on us, when he developed his analysis of

power and how parties move from conflict to bargaining. Selekman worked during the 1950s and 1960s, decades of considerable turmoil and strikes. He believed that the constructive use of power could bring the parties together and provide a basis for an accommodating relationship (Selekman and Selekman 1956).

The “pre-table” phase is highly relevant to many current situations. For example, the United States has recently seen a widening gap between police departments and the communities they serve (see Podziba in this issue). What is called for are discussions and negotiations that help police appreciate the fear engendered by their protocols and also encourage communities to understand the police officers’ perspectives — so that all citizens can have a safe environment. Such an effort requires asking tough questions and undertaking research to answer them: how do the parties overcome the stereotyping that undermines relations in many cities between police departments and the communities they serve? How can they establish trust?

Of course, violent conflict in the international arena also calls for more effective conflict management. In writing *A Behavioral Theory*, we used the Cuban missile crisis to illustrate its possible application to this arena. Today we observe what might be called “expanding systems of conflict” in many regions of the world. For example, both Syria and Yemen are at the centers of expanding systems of conflict. In each case, the conflict started with two or three engaged parties, but soon many other parties became involved, including national governments, multi-nation coalitions, insurgent and rebel groups, and terrorist groups, and until June 2015 none of these parties engaged in negotiations. We must understand how these systems expand, and their implications for the countries involved.

Consider the conflict in Yemen. Until recently, it involved only three parties:

1. the Sunni-led Yemen government;
2. its enemy, the terrorist group, *al-Qaeda of the Arabian Peninsula* (AQAP); and
3. its ally, *the United States*, which has conducted drone attacks against al-Qaeda forces.
4. Then the *Shiite Houthi tribe from the north of Yemen* displaced the Sunni-led government, forcing President Abd Rabbuh Mansur Hadi into exile.
5. *Iran* moved to support its fellow Shiites, the Houthis.
6. And *Saudi Arabia* initiated an air campaign against the Houthis with the objective of restoring the exiled Sunni-led government.

-
7. Soon the *southern Yemen Sunni tribes* joined the effort against the Houthis.
 8. In the meantime, the terrorist group known as *the Islamic State or ISIS* joined the fray, attacking Shiites and in so doing competing with the better-established AQAP for recruits in the Sunni-based jihadist movement.

The United Nations has also become involved, sending a special envoy to work with the parties to reach a negotiated settlement that specifies the composition of the Yemen government. In early June 2015, the envoy announced that the Houthis and the exiled government they displaced would begin negotiations in Geneva. As this issue of *Negotiation Journal* goes to press, we know neither how the conflict was brought to the negotiating table nor what the results might be.

We would advocate for research and the development of teaching case studies on the Yemen conflict system and others like it. A matrix that captures the situation's complexity could be a helpful device. Consider the Yemen case, in which there are at least eight interested and involved parties, each with a stance — positive, negative, or ambivalent — toward each of the other seven parties, with each aware of the stances that other parties take toward it. In such an eight by eight matrix, each party's stance toward the other parties would be shown in the rows, and how a party is regarded by the others would be shown in the columns. A next step would be to identify the interests at stake within each cell of the matrix — different combinations of issues are relevant to each pair, and the combination of substantive issues and potential social contracts represents the building blocks for sustainable agreements.

Each party faces an abundance of strategic and tactical questions. These include:

1. Where a party's positive stance toward another is reciprocated, should it collaborate more closely and if so, how?
2. Where a party's negative stance is reciprocated, should it try to negotiate its differences with that other party or merely attempt to limit its influence?
3. Where two other parties are hostile toward the first party (and holding positive stances toward each other), should the first party seek to weaken their ties?

In a setting like the eight by eight matrix, one might say that the task of getting the two most relevant parties to the table with at least the acceptance of the other six is like "herding cats." In the international arena today, we must learn how to "herd cats."

During the preliminaries to a negotiation and during the process itself, the parties must take into account what actions are not ethically acceptable. It has been noted that *A Behavioral Theory* was “curiously silent on the topic of ethics” (Greenhalgh and Lewicki, this issue). Given that we were primarily developing a descriptive theory and only secondarily offering a few prescriptive ideas, it did not occur to us to discuss ethical issues. Written today, a book advancing a new negotiation paradigm would certainly be expected to do so.

Standards undoubtedly differ when considering the actions of individuals in a personal relationship versus the behavior of parties in a formal negotiation seeking to resolve a major disagreement. Consider, for example, the following tactical maneuvers:

- exaggerating the attractiveness of one’s alternatives (BATNA) in the event no agreement is reached;
- bluffing about the severity of actions that one may take should there be no agreement; and
- concealing or denying circumstances that would weaken one’s case.

Clearly, negotiators must ponder, given these illustrative tactics and others: what is acceptable in personal relationships and what is not acceptable in a social negotiation.

Implementing the Agreement

We turn now to the final phase of what can be called the “negotiation value chain,” namely the implementation of understandings reached at the table, the “delivery of value,” or life after the harvest. This important phase of the process determines how well the agreement actually gets implemented and why. Too often, agreements are not implemented effectively and generate misunderstandings. The articles in this volume that deal with dispute resolution explicate some of the challenges of the day-to-day effort to make agreements work in practice. Skilled practitioners recognize that a settlement often doesn’t actually *settle* anything, and that negotiations are ongoing and must deal with unforeseen developments.

In some cases, parties work together collaboratively on a continuing basis viewing themselves as partners (Dabney, Dudley, and Pruitt, this issue; Rondeau, this issue). We need to better understand how those who play the role of chief negotiators at the bargaining table can also play effective ongoing roles as agents and representatives of their constituents. Despite a growing emphasis on transparency, constituents without a seat at the table often suspect that their agents are not pursuing their interests and are consequently less willing to accept the terms of the agreement. John Dunlop said: “It takes three agreements before the parties can conclude negotiations.” Reaching consensus with constituents is often more difficult

than reaching agreement with the other parties, and this remains a challenge throughout the implementation process, but in different ways that need to be better understood.

Partnerships and other collaborative relationships often revert to adversarialism when the leaders who crafted the agreement leave the scene and those who replace them favor a more traditional approach. Military organizations (especially when engaged in war) generally do not alter course when new leaders take command, so why are relationships in other settings so fragile and the half-life of cooperative programs so short? This is another subject that requires scholarly attention — we need to better understand why trusting relationships are hard to sustain and how the impetus that motivates the parties to work together can be sustained and made salient, especially for new generations of stakeholders. Another way to state the challenge: how can collaboration be institutionalized and cooperation embedded in the ongoing relationship between the parties?

Finally, we would like to reiterate the need for “thick” (i.e., detailed) descriptions of all phases of the negotiation journey. In our theorizing, we benefited from detailed transcriptions of the give and take in negotiations that Selekmán had obtained, as well as those we were able to access during our fieldwork. Answering the fundamental two questions that we have identified here — what is going on during both the pre-table phase and implementation — requires access to that kind of raw detail.

REFERENCES

- Bazerman, M. H. 1983. Negotiator judgment: A critical look at the rationality assumption. *American Behavioral Scientist* 27(2): 211–228.
- Cutcher-Gershenfeld, J., K. Baker, N. Berente, D. Carter, L. DeChurch, C. Flint, J. Gant, G. Gershenfeld, B. Grant, M. Haberman, J. L. King, E. Knight, B. Lawrence, S. Lewis, P. Lopez, M. Mayernik, C. McElroy, B. Mittleman, V. Nichol, J. M. Nolan, S. Pak, D. Ruengvisesh, N. Shin, C. Thompson, A. Willet, S. Winter, and I. Zaslavsky. 2015. *Internal alignment for multi-stakeholder consortia*. Working Paper, Stakeholder Alignment Collaboration.
- Cutcher-Gershenfeld, J. E. 1994. Bargaining over how to bargain in labor-management negotiations. *Negotiation Journal* 10(4): 323–335.
- Fisher, R., and W. Ury. 1983. *Getting to yes: Negotiating agreement without giving in*. New York: Penguin.
- Hunter, L. W., and R. B. McKersie. 1992. Can “mutual gains” training change labor-management relationships? *Negotiation Journal* 8(4): 319–330.
- Lax, D., and J. Sebenius. 1986. *The manager as negotiator: Bargaining for competitive gain*. New York: The Free Press.
- McGregor, D. 1960. *The human side of enterprise*. New York: McGraw-Hill.
- McKersie, R. B. 2012. The day-to-day life of a dean: Engaging in Negotiations and negotiations. *Negotiation Journal* 28(4): 475–488.
- Mnookin, R. H., and L. E. Susskind (eds). 1999. *Negotiating on behalf of others: Advice to lawyers, business executives, sports agents, diplomats, politicians, and everybody else*. Thousand Oaks, CA: Sage Publications.
- Selekmán, S., and B. Selekmán. 1956. *Power and morality in a business society*. Westport, CT: Greenwood Press.
- Shapiro, D. L. 2002. Negotiating emotions. *Conflict Resolution Quarterly* 20(1): 67–82.

-
- Walton, R. E. 1969. *Interpersonal peacemaking*. Boston: Addison Wesley.
- — —. 1970. A problem-solving workshop on border conflicts in Eastern Africa. *Journal of Applied Behavioral Science* 6(4): 453-495.
- — —. 1987. *Managing conflict: Interpersonal dialogue and third party roles*. Boston: Addison Wesley.
- Walton, R. E., J. Cutcher-Gershenfeld, and R. B. McKersie. 1994. *Strategic negotiations: A theory of change in labor-management relations*. Boston: Harvard Business School Press.
- Wheeler, M. 2013. *The art of negotiation: How to improvise agreement in a chaotic world*. New York: Simon and Schuster.

